Notification Waiver Determination

Imaging Associates Radiology - Sunraysia Radiology in Mildura, VIC

Acquisition	Imaging Associates Radiology Pty Ltd (**IA Radiology**) applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Country Radiology Pty Ltd (**Sunraysia Radiology**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	20 October 2026

Parties to the Acquisition	The acquirer, IA Radiology, provides on-site diagnostic imaging (**DI**) services from 28 private clinics (including private hospitals) in metropolitan and regional Melbourne, metropolitan Adelaide and Wagga Wagga in the Riverina region of New South Wales. Imaging Associates also provides DI services to public hospitals, and teleradiology services. IA Radiology is a wholly owned subsidiary of Radia Group Pty Ltd (**Imaging Associates**), which is majority owned by a combination of funds managed by private equity firm Advent Partners Pty Ltd, together with other shareholders comprising radiologists and management of Imaging Associates. The target, Sunraysia Radiology, is an independent provider of on-site DI services operating from a single private clinic in Mildura, Victoria. Sunraysia Radiology does not provide any services to public hospitals or private hospitals and does not provide teleradiology services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between IA Radiology and Sunraysia Radiology in the supply of DI services in the Mildura region b. there are alternative suppliers of DI services in Mildura and the surrounding region.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act